

26STCP01072 26STCP01072

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Case Number: 26STCP01072 Hearing Date: August 18, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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DERRYL MINNER,

Petitioner(s),

vs.

CITY OF

REDONDO BEACH,

Respondent(s).

Case No.:

26STCP01072

Hearing Date:

August 18, 2026

[TENTATIVE]

ORDER RE: PETITION FOR RELIEF FROM LATE CLAIM LAW

Petitioner Derryl Minner ("Petitioner") seeks leave to present a late claim for damages against Respondent City of Redondo Beach ("Respondent").

The petition is denied.

I.

Background

1.

Factual Background

Petitioner alleges that on August 30, 2024, officers of the Redondo Beach Police Department ("RBPD") subjected him to an unlawful stop and excessive force causing personal injuries, and thereafter Petitioner was indicted with criminal charges ("Incident"). (Minner Decl., ¶ 2-3.) The charges were dismissed on May 12, 2025. (Minner Decl., ¶ 6.)

On February 24, 2025, Petitioner's criminal defense counsel filed a complaint with the Los Angeles Police Department ("LAPD") based on the Incident. (Ambaye Decl., ¶ 5, Ex. A.) On March 7, 2025, LAPD notified Petitioner that LAPD did not have jurisdiction over RBPD. (Ambaye Decl., ¶ 7, Ex. C.)

On August 29, 2025, Petitioner applied to Respondent for leave to present a late claim, along with a proposed claim against Respondent based on the Incident. (Ambaye Decl., ¶ 13, Exs. E-F.) On September 15, 2025, Respondent denied Petitioner's application. (Ambaye Decl., ¶ 16, Ex. G.)

2.

Procedural History

On March 16, 2026, Petitioner filed his petition for relief from the claim filing requirements of Government Code^[1] section 945.4, along with a supporting memorandum. A proof of service filed April 1, 2026 shows Petitioner served the petition on Respondent by overnight delivery on March 25, 2026. On May 6, 2026, Respondent filed its opposition to the petition. On May 8, 2026, Petitioner filed his reply.

On July 7, 2026, the Court on its own motion continued the hearing to August 18, 2026 for supplemental briefing. The Court directed Petitioner to file and serve one supplemental declaration and supplemental brief not to exceed four pages by July 24, 2026. The Court directed Respondent to file and serve a supplemental response not to exceed four pages by August 7, 2026.

On July 24, 2026, Petitioner filed his supplemental brief and declaration. On August 7, 2026, Respondent filed a declaration in support of supplemental response, but no supplemental response. On August 10, 2026, Respondent filed its supplemental response. The Court exercises its discretion to consider the untimely filing.

II.

Legal Standard

A plaintiff bringing suit for monetary damages against a public entity or employees thereof must first present a claim to the public entity which must be acted upon or deemed rejected by the public entity. (§§ 945.4, 950.2, 950.6(a).) To be timely, a government claim for damages must be presented to the public entity within six months of the date the cause of action accrued. (§ 911.2.)

If a plaintiff fails to file a government claim within the six-month period, he or she may apply to the public entity for permission to file a late claim. (§ 911.4.) Such an application must be presented within a reasonable time, and not later than one year after the cause of action's accrual. (§ 911.4(b).)

If the public entity denies the application for permission to file a late claim, the plaintiff may file a civil petition for relief from section 945.4's requirement of timely claim presentation prior to suit. (§ 946.6.)

The petition must be filed within six months after the application to the public entity is denied or deemed to be denied. (§ 946.6(b).)

The petition must show: (1) that an application was made to the public entity under section 911.4 and was denied or deemed denied; (2) the reason for failure to timely present the claim to the public entity within the time limit specified in section 911.2; and (3) the information required by section 910. (§ 946.6(b).)

The court shall grant relief only if it finds that (1) the application to the public entity for leave to file a late claim was made within a reasonable time not to exceed one year after accrual of the claim as specified in section 911.4(b), (2) was denied or deemed denied by the public agency pursuant to section 911.6, and (3) one or more of the following is applicable: (a) the failure to timely present the claim was through mistake, inadvertence, surprise, or excusable neglect, unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of section 945.4; (b) the person who sustained the alleged injury, damage or loss was a minor during all of the time specified in section 911.2 for the presentation of the claim; (c) the person who sustained the alleged injury, damage or loss was physically or mentally incapacitated during all of the time specified in section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time; or (d) the person who sustained the alleged injury, damage or loss died before the expiration of the time specified in section 911.2 for the presentation of the claim. (§ 946.6(c).)

III.

Discussion

Petitioner argues his failure to timely present his claim to Respondent was because of excusable neglect on the basis that his prior counsel assured him she would take all necessary legal steps to pursue monetary claims, but then presented his claim to the wrong public entity.

1.

Petitioner Has Not Shown Excusable Neglect

Petitioner argues that his counsel's filing of a formal misconduct complaint to LAPD (rather than presenting a government claim to RBPd) constitutes excusable neglect. Petitioner offers only the general policy in favor of resolving cases on the merits for supporting legal authority. (Opp. at 6, citing *Hernandez v. County of Los Angeles* (1986) 42 Cal.3d 1020.)

In opposition, Respondent presents authority showing that a client or attorney's failure to investigate is not excusable neglect (Opp. at 5, citing *Rojas v. Riverside General Hospital* (1988) 203 Cal.App.3d 1151, 1163, n. 5) and that the purpose of section 946.6 petitions is not to provide relief from inexcusable neglect (Opp. at 4, citing *Mitchell v. D.O.T.*

(1985) 163 Cal.App.3d 1016, 1021).

The petitioner has the burden of establishing the basis for relief under section 946.6. (*Department of Water & Power v. Superior Court* (2000) 82 Cal.App.4th 1288, 1294 [“*Water & Power*”]; *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1783 [“*Munoz*”].) “Excusable neglect is neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances.” (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435 [“*Ebersol*”], citing *Tammen v. County of San Diego* (1967) 66 Cal.2d 468, 476; *Water & Power* at 1294.) A petitioner or petitioner’s counsel must show more than the mere failure to discover a fact until too late; he or she must establish the failure to discover that fact in the use of reasonable diligence. (*Munoz* at 1783, citing *City of Fresno v. Superior Court* (1980) 104 Cal.App.3d 25, 32.)

Initially, Petitioner only presented evidence to show his prior counsel presented his claim to the wrong government entity. (*Minner Decl.*, ¶ 6; *Ambaye Decl.*, ¶ 5-8, Exs. A-C.) Petitioner presented no evidence or description of what efforts counsel undertook to ensure the claim was presented to the correct entity, nor the cause of counsel’s mistaken filing with LAPD. (See generally *Petition*; *Minner Decl.*; *Ambaye Decl.*) Without some presentation of the nature of the error, the Court explained that it could not determine whether the error was the kind “that might have been the act or omission of a reasonably prudent person under the same or similar circumstances.” (*Munoz*, *supra*, 33 Cal.App.4th at 1782.)

On the Court’s order for supplemental briefing, Petitioner presents evidence to show his prior counsel was experiencing significant tumult in her personal life. (*Margolin Decl.*, ¶¶ 7-10, 16-17.) During this period, prior counsel was also responsible for her children. (*Margolin Decl.*, ¶ 9.) A few months later and before Petitioner obtained new counsel, Petitioner’s prior counsel was diagnosed with cancer. (*Margolin Decl.*, ¶ 18.)

Petitioner focuses too strongly on Petitioner’s reasonableness in reliance on his prior counsel. A section 946.6 claimant must at minimum make a diligent effort to obtain legal counsel timely. (*Ebersol*, *supra*, 35 Cal.App.3d at 439.) And to be sure, “[c]ourts ‘are somewhat loath to penalize a litigant on account of some omission on the part of his attorney, particularly where the litigant himself has acted promptly and has relied, as in the instant case, upon the attorney to protect his rights.’” (*Kaslavage v. West Kern*

County Water Dist. (1978) 84 Cal.App.3d 529, 537, quoting Stub v. Harrison (1939) 35 Cal.App.2d 685, 689-690.)

However, once retained, it is the responsibility of legal counsel to diligently pursue the claim. (Ebersol at 439.) Where the claimant's counsel makes an error leading to failure to timely present a claim, the claimant must still show counsel's error constituted excusable neglect. (Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 278 ["Bettencourt"].) Excusable neglect is neglect which might have been the act of a reasonably prudent person under the same or similar circumstances. (Id. at 276; Ebersol at 435; Water & Power, supra, 82 Cal.App.4th at 1294.) Ignorance of the claim's filing deadline is no excuse. (Harrison v. County of Del Norte (1985) 168 Cal.App.3d 1, 7; Drummond v. County of Fresno (1987) 193 Cal.App.3d 1406, 1412 ["Drummond"].) "In determining whether an attorney's error constitutes excusable neglect, the courts also consider the attorney's overall diligence or lack thereof in addition to examining the attorney's error." (Bettencourt at 278.)

In supplemental opposition, Respondent notes that Petitioner's supplemental showing does not explain what action prior counsel took to become aware of the claims filing requirement, nor why prior counsel believed LAPD was the correct entity to claim against. Respondent is correct, and this defect is fatal to Petitioner. Ignorance of the claim filing requirements is not, by itself, excusable neglect. (Drummond at 1412.) The claimant must explain the ignorance and why it is excusable. (See Ibid.)

Petitioner argues that, in light of prior counsel's turbulent personal circumstances,[2] and in light of the fact that prior counsel had "stepped outside her primary practice area to protect a client's rights," a reasonably prudent attorney in her circumstances "could have made the same category error – reaching for the mechanism she knew rather than researching the parallel framework she did not." (Pet. Suppl. Br. at 4.)

California Rules of Professional Conduct ("CRPC"), Rule 1.1, is instructive on this issue:

"If a lawyer does not have sufficient learning and skill

when the legal services are undertaken, the lawyer nonetheless may provide competent representation by (i) associating with or, where appropriate, professionally consulting another lawyer whom the lawyer reasonably believes* to be competent, (ii) acquiring sufficient learning and skill before performance is required, or (iii) referring the matter to another lawyer whom the lawyer reasonably believes* to be competent." (CRPC 1.1(c) [asterisks are in original and denote defined terms].)

A reasonably prudent attorney agreeing to preserve a client's rights in an unfamiliar practice area, in keeping CRPC, Rule 1.1, subdivision (c), would either research the unfamiliar practice area or associate with or refer her client to another attorney competent to practice in that area. While prior counsel's failure was perhaps understandable (and the Court certainly empathizes with the unfortunate life circumstances described), the evidence before the Court does not show any effort to meet this duty of competence.

Accordingly, Petitioner has not shown that failure to timely present the claim resulted from excusable neglect, and the Court need not reach any further analysis.

IV.

Conclusion

Petitioner has not met his burden to show excusable neglect. The petition for relief from claim filing requirements is DENIED.

Date: August 18, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email

to the court at with the Subject line

“SUBMIT” followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

All further statutory references are to the Government Code unless otherwise stated.

[2]

The Court accepts the declaration by Petitioner's prior counsel as credible, and the Court is sympathetic to the significant and distressing events she has experienced.